

CHAPTER 32.

An Act to amend the Midwives Acts, 1902 and 1918, and to provide for the registration and inspection of maternity homes, and for purposes connected therewith. [4th August 1926.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

PART I.

AMENDMENT OF THE MIDWIVES ACTS, 1902 AND 1918.

Amendment
of s. 1 (2) of
Midwives
Act, 1902.
2 Edw. 7.
c. 17.

1. The following subsection shall be substituted for subsection (2) of section one of the Midwives Act, 1902, (which relates to certification of midwives) :—

“(2) If any person, being either a male person, or a woman not certified under this Act, attends a woman in childbirth otherwise than under the direction and personal supervision of a duly qualified medical practitioner, that person shall, unless he or she satisfies the court that the attention was given in a case of sudden or urgent necessity, be liable on summary conviction to a fine not exceeding ten pounds :

“Provided that the provisions of this subsection shall not apply in the case of a person who, while undergoing training with a view to becoming a duly qualified medical practitioner or a certified midwife, attends a woman in childbirth as part of a course of practical instruction in midwifery recognised by the General Medical Council or by the Central Midwives Board.”

Amend-
ments of
Midwives
Act, 1918.

2.—(1) Where a midwife has been suspended from practice in order to prevent the spread of infection she shall, if she was not herself in default, be entitled to recover from the local supervising authority such amount by way of compensation for loss of practice as is reasonable in the circumstances of the case.

In subsection (2) of section six of the Midwives Act, 1918, the words from "or where" to "infection" shall be repealed. 8 & 9 Geo. 5.
c. 43.

(2) Subsection (2) of section fourteen of the Midwives Act, 1918 (which imposes a condition on the payment of a fee to a medical practitioner called in to assist a midwife in case of emergency), shall have effect as though at the end thereof there were added the words "and shall submit his claim within two months from the date on which he was called in."

(3) Subject to the sanction of the Minister of Health, a local supervising authority may make arrangements with any pregnant women in their area for the payment by such women to the authority, whether by instalments or not, of such sum as may be agreed to cover any liability which the authority may incur under section fourteen of the Midwives Act, 1918, in respect of fees payable to medical practitioners who may be called in by midwives in pursuance of that section, and subsection (4) of that section shall not apply in the case of any woman who has entered into such an arrangement and has duly paid the agreed sum.

3.—(1) The Central Midwives Board may, if they think fit, cause the roll of midwives to be divided into two parts, of which one shall contain the names of all those practising midwives whose names have been supplied to the Board by local supervising authorities in the month of January in each year, in accordance with the provisions of section eight of the Midwives Act, 1902, and shall be published annually, and the other shall contain the names of all other persons who are entitled to be on the roll, and shall be published at such intervals, not exceeding five years, as the Minister of Health may approve. Provision as
to midwives'
roll.

(2) The Central Midwives Board may from time to time by registered letter addressed to any woman whose name is included in the roll of midwives at her address as appearing therein, inquire of her whether she has ceased practice or has changed her residence; and if within a period of six months from the sending of such a letter no answer is received thereto, the Board may erase the name of that person from the roll and may cancel her certificate, but without prejudice to the

power of the Board subsequently to restore the name to the roll and to re-issue the certificate if it appears proper so to do.

Regulations
as to badges.

4. The power of the Central Midwives Board to frame rules under section three of the Midwives Act, 1902, shall include a power to frame a rule as to the wearing of badges by certified midwives, and if any such rule is made, subsection (1) of section one of that Act shall have effect as if the words "or badge," were inserted therein after the word "description."

Subsection (2) of section eight of the Midwives Act, 1918 (which provides for the surrender by a midwife of her certificate when her name is removed from the roll in certain circumstances), shall apply to any badge issued to any person by virtue of the provisions of this section as it applies to the certificate of a midwife.

PART II.

REGISTRATION OF MATERNITY HOMES.

Registra-
tion.

5.—(1) Any person who on or after the appointed day carries on a maternity home within the meaning of this Act shall, unless that person is registered in respect of that home, be liable on conviction to a fine not exceeding fifty pounds or, in the case of a second or subsequent offence to imprisonment not exceeding three months either in lieu of or in addition to any such fine.

(2) Application for registration shall be made to the local supervising authority in writing in the form prescribed by the Minister of Health, and shall be accompanied by a fee of five shillings.

All fees received by a local supervising authority under this section shall be paid into the county fund or the borough fund as the case may be.

(3) Subject as hereinafter provided, the local supervising authority on the receipt of an application for registration shall register the applicant in respect of the maternity home named in the application:

Provided that the authority may refuse to register the applicant if they are satisfied—

(a) that the applicant or any person employed by the applicant at the home is not a fit person,

whether by reason of age or otherwise, to carry on or to be employed at a maternity home; or

- (b) that for reasons connected with situation, construction, accommodation, staffing or equipment, the home or any premises used in connection therewith are not fit to be used for a maternity home, or that the home or the premises are used or to be used for purposes which are in any way improper or undesirable in the case of a maternity home.

6. Subject as hereinafter provided, a local supervising authority may at any time cancel the registration of any person or home for any reason which would entitle them to refuse an application for registration, or by reason of a conviction for an offence against this Part of this Act in respect of that person or home.

Cancellation of registration.

7.—(1) Before making an order refusing an application for registration or cancelling any registration the local supervising authority shall give to the applicant or to the person registered, as the case may be, not less than fourteen days notice of their intention to make such an order setting out the reasons why they intend to make the order, and giving the applicant or person notice that if, within fourteen days of the receipt of the notice he informs the authority in writing of his desire so to do, the authority will give him or his representative an opportunity before the order is made of showing cause why the order should not be made.

Notice of refusal or cancellation of registration.

(2) If after giving any such person or his representative an opportunity of being heard the authority decide to refuse the application for registration or to cancel the registration, they shall make an order to that effect and shall send a copy of the order to that person.

(3) Such an order shall not come into force until the expiration of fourteen days from the date on which the order was made, or, where notice of appeal has been given against the order, until the appeal has been decided or withdrawn.

(4) Any person aggrieved by an order made under this section may appeal against the order to a court of summary jurisdiction within fourteen days after the date on which the order was made, and the appellant or

the local supervising authority, if aggrieved by the order made by the court of summary jurisdiction on any such appeal, may appeal against the order to a court of quarter sessions in manner prescribed by the Summary Jurisdiction Acts.

Byelaws.

8.—(1) The local supervising authority may make byelaws—

(a) with respect to records to be kept of patients received into and children born in a maternity home, and of children so born who are removed from the home otherwise than to the custody or care of any parent, guardian, or relative;

(b) as to notification of any death and the cause thereof occurring in a maternity home.

38 & 39 Vict.
c. 55.

(2) The provisions of sections one hundred and eighty-two to one hundred and eighty-six of the Public Health Act, 1875, shall, so far as they relate to byelaws made by an urban sanitary authority, apply to byelaws made under this section.

(3) In every maternity home there shall on and after the appointed day be exhibited in a conspicuous place the certificate of registration relating to the home.

Inspection
of maternity
homes.

9.—(1) An officer duly authorised by the local supervising authority may, subject to such regulations as may be made by the authority, at all reasonable times enter and inspect any premises which are used, or which that officer has reasonable cause to believe to be used, for the purposes of a maternity home, and to inspect any records required to be kept in accordance with the provisions of this Part of this Act.

(2) If any person refuses to allow any such officer to enter or inspect the premises, or obstructs any such officer in the execution of his duty under this section, he shall be guilty of an offence against this Part of this Act, and shall be liable, on summary conviction, to a fine not exceeding five pounds, together with, in the case of a continuing offence, a fine not exceeding two pounds in respect of each day on which the offence continues after the date of conviction.

10. Where a person convicted of an offence against this Part of this Act is a company, the chairman and every director and every officer concerned in the management of the company shall be guilty of the like offence, unless he proves that the act constituting the offence took place without his knowledge or consent. Offences by companies.

11.—(1) A local supervising authority may grant exemption from the operation of this Part of this Act in respect of— Power to exempt certain institutions from Part II.

- (a) any hospital or other premises for the conduct of which a duly qualified medical practitioner resident therein is responsible; or
- (b) any hospital or institution not carried on for profit and not used mainly as a maternity home.

(2) A local supervising authority may at any time withdraw an exemption granted by it under this section.

(3) Any person who is aggrieved by the refusal of a local supervising authority to grant exemption under this section in respect of any hospital, premises or institution, or by the withdrawal of any such exemption previously granted by the authority, may appeal against the refusal or withdrawal to the Minister of Health, and the Minister, after considering the matter, shall give such directions therein as he thinks proper, and the authority shall comply with any directions so given.

PART III.

GENERAL.

12. In this Act unless the context otherwise requires:— Interpretation.

The expressions “register” and “registration” mean register and registration under Part II. of this Act;

The expression “appointed day” means the first day of January nineteen hundred and twenty-seven;

The expression “maternity home” means any premises used or intended to be used for the reception of pregnant women or of women immediately after childbirth, but shall not include any hospital or other premises maintained

or controlled by a Government Department or local authority, or by any other body of persons constituted by special Act of Parliament or incorporated by Royal Charter;

The expression "offence against this Part of this Act" includes an offence against any byelaws made under Part II. of this Act.

Repeal.

13 Geo. 3.
c. 82.

13. As from the passing of this Act it shall not be necessary to obtain a licence for the establishment of a lying-in hospital in accordance with the provisions of the Lying-in Hospitals Act, 1773, and accordingly sections one, two and four of that Act are hereby repealed:

Provided that nothing in this repeal shall affect any provisions of that Act relating to the law with respect to settlement.

Short title,
construc-
tion, extent
and saving.

14.—(1) This Act may be cited as the Midwives and Maternity Homes Act, 1926, and shall be construed as one with the Midwives Acts, 1902 and 1918, and those Acts and this Act may be cited together as the Midwives and Maternity Homes Acts, 1902 to 1926.

(2) This Act shall not apply to Scotland or Northern Ireland.

(3) Nothing in this Act shall affect the provisions of any local Act.

CHAPTER 33.

An Act to apply a sum out of the Consolidated Fund to the service of the year ending on the thirty-first day of March, one thousand nine hundred and twenty-seven, and to appropriate the further Supplies granted in this Session of Parliament. [22nd November 1926.]

Most Gracious Sovereign,

WE, Your Majesty's most dutiful and loyal subjects, the Commons of the United Kingdom of Great Britain and Ireland in Parliament assembled, towards making good the supply which we have cheerfully granted